

Before the
FEDERAL MARITIME COMMISSION
Washington, D.C. 20573
Docket No. 25-02

NIELSEN & BAINBRIDGE, LLC V.
OCEAN NETWORK EXPRESS PTE. LTD., ORIENT OVERSEAS CONTAINER
LINE LIMITED, OOCL (EUROPE) LIMITED, EVERGREEN LINE JOINT SERVICE
AGREEMENT (FMC#011982), EVERGREEN MARINE CORPORATION (TAIWAN) LTD.,
EVERGREEN MARINE (UK) LIMITED, ITALIA MARITTIMA SPA, EVERGREEN
MARINE (HONG KONG) LTD., EVERGREEN MARINE (SINGAPORE) PTE. LTD., AND
YANG MING MARINE TRANSPORT CORPORATION

**COMPLAINANT’S MOTION FOR LEAVE TO INITIATE DISCOVERY OR, IN THE
ALTERNATIVE, TO SCHEDULE A STATUS CONFERENCE**

Complainant Nielsen & Bainbridge, LLC, on behalf of itself and its subsidiaries and affiliates (collectively “NBG” or “Complainant”), by counsel, files this motion to respectfully request that the Presiding Officer grant leave to begin discovery or, alternatively, schedule a status conference to discuss a plan for discovery.

FACTS

NBG filed its Complaint on December 31, 2024. After NBG filed its Complaint:

- Respondents Orient Overseas Container Line Limited and OOCL [Europe] Limited (“OOCL”) filed a Motion to Sever and Motion for a More Definite Statement on January 23, 2025.

- Respondent Ocean Network Express Pte. Ltd. (“ONE”) filed its own Motion to Sever and Motion for a More Definite Statement (together with OOCL’s Motion to Sever and Motion for a More Definite Statement, the “Motions”) on February 3, 2025.
- Respondents Evergreen Line Joint Service Agreement (FMC#011982), Evergreen Marine Corp. (Taiwan) Ltd., Evergreen Marine (UK) Limited, Italia Marittima SpA, Evergreen Marine (Hong Kong) Ltd., and Evergreen Marine (Singapore) Pte. Ltd., and Yang Ming Marine Transport Corporation submitted a joint Answer on February 3, 2025.
- NBG submitted its opposition to ONE and OOCL’s Motions on February 17, 2025.

During the pendency of these Motions, NBG complied with its initial discovery obligations, serving its Initial Disclosures on February 10, 2025.

NBG then sought, without success, to work out a discovery plan with Respondents, with the goal of completing discovery in a timely and efficient manner. On April 29, 2025, NBG emailed all Respondents, stating:

As you know, the Motions to Sever/More Definite Statement are still pending and we do not currently have an initial scheduling order in place. ***In order to make sure that we have adequate time to plan for and proceed with discovery, we would like to jointly request a status conference with the ALJ to determine the expectations from the parties in terms of discovery during this time.***

Please let us know if you are amenable to a joint status conference and we can prepare a request to do so.

Please also let us know if you would be interested in beginning to discuss custodians and search terms for purposes of collecting and preserving documents while we wait for an Order.

(emphasis added).

All Respondents declined the invitation for a joint status conference, and no Respondent agreed even to discuss proper custodians and/or search terms. Thus, to date, Respondents have uniformly refused to take any steps to begin providing discovery in this matter.

The Presiding Officer entered an order on Motions to Sever and Motions for a More Definite Statement on June 18, 2025, and the parties submitted supplemental briefing as directed

on July 7, 2025. The Motions accordingly remain pending, and discovery into Respondents' conduct has yet to begin.

**REQUEST FOR LEAVE TO INITIATE DISCOVERY OR, IN THE ALTERNATIVE, TO
SCHEDULE A STATUS CONFERENCE**

NBG respectfully moves for the Presiding Officer to grant leave to initiate discovery or, in the alternative, to schedule a status conference to discuss a plan for discovery. It is important for discovery to begin as soon as possible. As discussed above, Respondents have refused to begin discovery (or even to engage in preliminary discussion of appropriate custodians or search terms) since NBG filed its Complaint in December 2024. The Presiding Officer should grant leave to initiate discovery because (1) further delay of discovery will interfere with the prompt adjudication of this proceeding and (2) further delay will prejudice NBG.

The delay in obtaining discovery from Respondents is likely to interfere with the prompt adjudication of this matter. The Initial Decision in this matter is currently due on January 8, 2026, which is 146 days from today's date. Because Respondents have not yet begun producing any discovery, or even agreed to meet and confer about the basic parameters of discovery, it seems unavoidable that both the Initial Decision and the Final Decision in this matter will have to be postponed to accommodate discovery and trial briefing.

Further delay would also prejudice NBG. NBG is a bankrupt entity with no continuing business operations, and is currently incurring substantial recurring expenses to preserve and host data so it can comply with its own discovery obligations. Moreover, the NBG personnel who were

most involved in interacting with Respondents are all now ex-employees, and the passage of time is likely to lead to further erosion of memory and availability.

Respondents, by contrast, would not be prejudiced by a prompt opening of the discovery period. Regardless of whether, and to what extent, the Presiding Officer exercises discretion to sever some or all claims, the claims will need to be litigated, and discovery will need to be provided. Respondents' witnesses, like NBG's, will also be more likely to recall events accurately if their depositions can be scheduled before the passing of substantial additional time.

CONCLUSION

For the foregoing reasons, NBG respectfully requests that the Presiding Officer grant leave to begin discovery. If the Presiding Officer declines to grant such leave, NBG alternatively respectfully requests a status conference to discuss a schedule for discovery and resolution of this matter.

Dated: August 15, 2025

Respectfully submitted,

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CERTIFICATE OF SERVICE

I hereby certify that I have this day served the foregoing document upon Respondents Ocean Network Express Pte. Ltd. (“ONE”), Orient Overseas Container Line Limited, OOCL (Europe) Limited (together with Orient Overseas Container Line Limited, “OOCL”), Evergreen Line Joint Service Agreement (FMC#011982), Evergreen Marine Corp. (Taiwan) Ltd. (“Evergreen Taiwan”), Evergreen Marine (UK) Limited (“Evergreen UK”), Italia Marittima SpA (“Italia”), Evergreen Marine (Hong Kong) Ltd. (“Evergreen Hong Kong”), and Evergreen Marine (Singapore) Pte. Ltd. (“Evergreen Singapore” and collectively with the Evergreen Line Joint Service Agreement, Evergreen Taiwan, Evergreen UK, Italia, and Evergreen Hong Kong, “Evergreen”), and Yang Ming Marine Transport Corporation by emailing a copy to their counsel of record listed below:

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Dated: August 15, 2025

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